

Civil Procedure section 1008. Alternatively, he seeks relief under Code of Civil Procedure section 473(d) to set aside a void order.

Submission of Proposed Orders

In short, after the court hearing on July 3, 2025, the court adopted the tentative ruling as the order, and defense counsel was directed to prepare an order after hearing. In the process of obtaining plaintiff's review of the proposed order under CRC 3.1312(b), plaintiff asserts that defense counsel misrepresented his objections, and therefore did not comply with the requirement that the order be submitted with "a summary of any responses of the other parties[.]"

The proposed order, as submitted to the Court and as entered, attached a copy of the entire tentative ruling. Plaintiff asserts that the fact that the court entered the orders as submitted (which duplicated the tentative rulings) was due to the misrepresentation of counsel of his position.

Defendant responds that it accurately summarized plaintiff's views and attached a copy of his proposed version of the orders. (Shmygol Dec., Ex. H.) As to the summary of plaintiff's position, the submission stated: "Plaintiff contends the form of the Proposed Order should also include the Court's rulings on evidentiary issues, in addition to attaching the minutes that include the tentative ruling."

The summary did not mislead the Court. Based on the Court's review of the email transmissions between the parties, it accurately describes plaintiff's position. Any doubt about the matter is addressed by the inclusion of plaintiff's proposed order after hearing. Accordingly, the motion to vacate or reconsider the two orders is denied.

Request for Sanctions and Referral to the State Bar.

Defendant also responds that the motion was not timely and that the request for sanctions did not comply with the 21-day safe-harbor notice provision. This appears to be correct. The Court denies the request, however, on the ground that defense counsel committed no sanctionable conduct. For the same reason, the Court denies the request to refer defense counsel to the State Bar.

Other matters

Plaintiff also complains of various actions allegedly taken by defense counsel after the submission of the order, which he claims demonstrate bad faith, and warrant vacating the arbitration order. He also seeks to modify the stay of proceedings. This must be addressed by a separate motion. (Nor is this relief expressly set forth in the mandatory notice of motion.)

Defense evidentiary objections

Because the motion is denied even if all of plaintiff's evidence is admitted, the Court will not rule on the evidentiary objections.

Conclusion

The motion is **denied**.

12. 9:00 AM CASE NUMBER: C25-01598

CASE NAME: ANIL MALIK VS. SETH WIENER

*HEARING ON MOTION IN RE: STAY ACTION PENDING RESOLUTION OF UNDERLYING ACTION

FILED BY: WIENER, SETH W

TENTATIVE RULING:

Before the Court is Defendant Seth W. Wiener, dba Law Offices of Seth W. Wiener ("Defendant")'s motion for an order staying the instant action until resolution of the underlying action, *Malik v. Fierro*, et al. Case No. MSC21-02370. The motion is opposed by Plaintiff Anil Malik ("Plaintiff").

Defendant moves pursuant to CCP § 128(a)(3) and CRC 3.515 on the grounds that the resolution of the issues pending in the underlying case (a construction defect case) from which this case (a legal malpractice action) arises significantly impacts the issues of causation and damages in this case.

For the following reasons, the motion is **granted**.

Request for Judicial Notice

Plaintiff requests judicial notice of two minute orders in Case No. MSC21-02370. The unopposed request is **granted**.

Analysis

Pursuant to CCP §128(a)(3), every court has the power to provide for the orderly conduct of proceedings—which includes the power to put a halt to proceedings in the interests of justice. Courts should consider the interests of the plaintiff in proceeding expeditiously, the burden (if any) on the defendant, the convenience of the court in the management of its cases and the efficient use of judicial resources, and the overarching interest of the public in the pending litigation. (*Avant! Corp v. Superior Court* (2000) 79 Cal.App.4th 876, 884.) When the request for a stay is premised on related litigation in another forum, a court should consider the interests of justice and judicial economy, the cost of multiple and vexatious litigation, any risk of inconsistent rulings, the ability of the litigants to obtain full relief, and the convenience of the parties. (*Leadford v. Leadford* (1992) 6 Cal.App.4th 571, 574-575.) A stay is appropriate where there is a strong probability that issues necessary to a determination of the action would be concluded, in whole or in part, in the other proceeding. (*Federal Ins. Co. v. Superior Court* (1998) 60 Cal.App.4th 1370, 1373; *Belnap Freight Lines, Inc. v. Petty* (1975) 46 Cal.App.3d 159, 164.)

Defendant argues, relying on Rosenthal, that "[s]taying a legal malpractice action is wholly appropriate where proximate cause or damages cannot fully be ascertained until resolution of a related matter." (Mot. at 5:9-11 [citing *Rosenthal v. Wilner* (1988) 197 Cal.App.3d 1327].)

In opposition, Plaintiff argues that "a stay would do nothing more than delay Plaintiff's ability to seek relief arising from Defendant's malpractice." (Opp. at 4:8-9.) This argument is not responsive to Defendant's argument that both causation and damages are implicated by the underlying action.

The court finds that a stay is warranted here pending the outcome of the underlying litigation. (See *Rosenthal, supra*, 197 Cal.App.3d at p. 1331 [""Irrespective of whether Rosenthal can establish that [attorney defendants] negligently represented him, he cannot successfully prove that their negligence was the proximate cause of the damages he allegedly sustained until the merits of the [underlying] appeal have been resolved.""]; *Sindell v. Gibson, Dunn & Crutcher*, 54 Cal. App. 4th 1457, 1473 n.11

["since it does appear that the full extent of plaintiffs' damages cannot be determined until the resolution of the pending litigation, the trial court has the inherent authority to stay this action pending that event."] [citation omitted].)

Because the Court grants the motion to stay, the pending motion to strike is off calendar.

A status conference to address the status of the stay and the underlying case is scheduled for March 6, 2026, at 8:30 a.m.

13. 9:00 AM CASE NUMBER: MS25-0449
CASE NAME: CSCDA COMMUNITY IMPROVEMENT AUTHORITY VS. ADONICA SHAW
***HEARING ON MOTION IN RE: MOTION TO SET ASIDE JUDGMENT AGREEMENT ENTERED UNDER DURESS**
FILED BY: SHAW, ADONICA
TENTATIVE RULING:

Defendant Adonica Shaw moves to set aside a judgment entered in an unlawful detainer as the result of a settlement. The settlement, entered July 11, 2025, provided that she would pay back rent and other costs of \$15,443.89, and could remain in possession until September 13, 2025.

The proceeding in question was a court trial, which was preceded by a voluntary settlement conference with a third-party mediator provided by the court. Defendant contends that Plaintiff was represented at the hearing by an attorney for the plaintiff who had not made any formal written appearance. She moves to set aside judgment on the ground it was obtained by "fraud, duress, or other improper means." Specifically, she claims that "this unauthorized representative attempted to strong-arm the defendant into a judgment or agreement without proper notice or opportunity for consultation."

Defendant anticipated the appearance of Christopher Rosseau, the attorney of record. Instead, a different attorney (Jacqueline Prisbylla) from the same firm (Kimbal, Tirey & St. John LLP), appeared. There was no prior or written notice of this "change." Defendant objects to some of the questions asked by Mr. Prisbylla. She further states that "Fearing imminent eviction of myself and my children, I signed the settlement agreement drafted by Ms. Prisbylla. My signature was not a free, knowing, or intelligent assent."

A third-party mediator, Deborah Levy, was present throughout the mediation.

As to the issue of plaintiff's attorney, once a law firm appears on behalf of a client, any attorney from that firm may appear in the case without need of a substitution of counsel. (*Raskin v. Superior Court* (1934) 138 Cal.App. 668, 670, 33 P.2d 35.) Thus, Ms. Prisbylla's appearance was not a "change" in attorneys, which would require compliance with Code of Civil Procedure section 284 and 285.

The fact that defendant was without counsel does not render the judgment improper.

Given the summary nature of unlawful detainer proceedings, defendant may indeed have faced the imminent prospect of losing her home. This is common in unlawful detainer proceedings, and does not by itself render any settlement unlawful or fraudulent, nor does it vitiate defendant's consent.

The circumstances of the agreement, even as set forth by defendant, do not set forth fraud, duress, or other improper means sufficient to permit setting aside the judgment. The motion is **denied**.